

23VECV03196 23VECV03196

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-11

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Case Number: 23VECV03196 Hearing Date: September 11, 2026 Dept: B

Tentative Ruling

Rose v. Loren, Case no. 23VECV03196

Hearing date September 11, 2026

Plaintiff

Rose's Motion to Compel Depositions of PMKs

Plaintiff

Rose sues defendants Loren Properties, LLC, Westside Habitats, LLC, Mehta and Graham for injuries associated with an assault. Plaintiff moves to compel the depositions of Loren Properties and Westside Habitats' employees and PMKs and for sanctions.

The

motion was scheduled on 6/25/26; the parties stipulated defense counsel "will produce Lopes[sic], Moseler, Hernandez, Garcia, Tucker and Mehta and the PMK of Westside Habitat for deposition within 30 days or shortly after at the agreement of counsel." 6/25/26 Min. Order. Plaintiff filed a second motion to compel deposition and for sanctions, alleging defendants failed to comply with the stipulation. Defendants filed a late opposition. As plaintiff filed a substantive reply, the court considers the opposition on its merits.

A party may move for an order

compelling the attendance and testimony of a deponent where the deponent fails to appear for examination following the service of a deposition notice. Code Civ. Proc. §2025.450.

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parties met and conferred on 7/2/26 regarding deposition dates. Decl. Smith, exh. E. Plaintiff served amended or re-noticed depositions on 7/8/26, setting depositions for July 15, 24 and 29. Id. at exh. F. Plaintiff sent the zoom links for the depositions of Lopez, Mehta, Garcia and Hernandez on 7/14/26. Id. at exh. G. Defense counsel responded he was unavailable 7/15/26 due to a family medical emergency. Id. at exh. H. Plaintiff moved forward with the depositions and recorded notices of non-appearance for all deponents. Id. at exh. I. Plaintiff recorded notices of non-appearance for Moesler and Tucker on 7/29/26, after defense counsel emailed plaintiff's counsel same-day, stating he missed the 7/29/26 deposition notices. Id. at exhs. K-L.

Defendant

argues multiple proposed deposition dates were provided, before and after the 6/25/26 hearing. See Decl. Safarian, exhs. A-G. Defendant argues plaintiff filed this motion despite being offered further dates and asserts plaintiff's counsel refused to agree to any of the dates offered by defense counsel. Id. at exh. G. Defendant asserts plaintiff's counsel failed to provide alternative dates despite being asked. Id. at exhs. G, J-K. Defendant asserts plaintiff failed to provide dates, despite stating this motion would be withdrawn if the depositions were completed prior to the hearing. Id. at exh. G.

Plaintiff

argues deponents have yet to appear, and the agreement between defense counsel and plaintiff's former counsel Smith, who departed the firm, was not a binding stipulation. Plaintiff argues an order compelling depositions on specific dates and sanctions are warranted.

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papers demonstrate a breakdown in communication. While deponents failed to appear in July, plaintiff's prior counsel failed to offer other dates prior to filing this motion. This is concerning considering counsels' written agreement to take this matter off calendar should the depositions occur, limiting costs incurred by all parties. The parties to meet and confer and select mutually agreeable deposition dates within 30 days of the hearing. The court will continue the issue of sanctions to the final status conference date, 11/6/26. Plaintiff may file a declaration 5 days prior regarding completion of depositions and whether sanctions are still requested.